1990s, TADA had been in force for nearly a decade and applied to twenty-three states and two union territories. More than ninety-five per cent of the citizens now came within its purview.[5]

TADA set up, in effect, a parallel criminal justice process and special courts for the speedy trial of those accused of terrorism. Some of its provisions were especially draconian. Under criminal law, it was the prosecution's burden to prove its case against the defendant. TADA reversed the burden of proof on to defendants in certain cases. With a view to safeguarding against custodial torture, the rules of evidence did not allow confessions procured in police custody to be admitted as evidence. TADA altered existing procedural safeguards by making confessions to senior police officers admissible. Defendants anticipating arrest could ordinarily apply for 'anticipatory bail' (a direction for release of the person on bail even before they are arrested). TADA not only negated the right to apply for anticipatory bail, but also made it more difficult to secure bail *after arrest*. Criminal appeals would normally proceed from the subordinate criminal courts to the state high court, with a further appeal to the Supreme Court. TADA eliminated one layer of appeal, by denying rights of appeal to state high courts and providing for direct appeal to the Supreme Court.

In the years after it was enacted, TADA became an instrument of oppression in the hands of the police and state authorities. A disproportionate number of those charged with offences under TADA were Muslims and Sikhs.[6] TADA was also frequently invoked in states that lacked a consistent history of terrorist violence, including Gujarat and Maharashtra. Despite the odds being stacked against the accused, conviction rates were embarrassingly low, with estimates ranging from 1 per cent to 4 per cent. This implied that only a small minority of those detained under TADA were ever proven, on evidence, to be terrorists. Especially because of its strict provisions on bail, under TADA the process was the punishment. Those that were ultimately acquitted had often spent many years in prison, sacrificing their family lives, reputations and careers.

Newspaper reports were replete with examples of frivolous or inappropriate cases filed under TADA. In one case, two men were charged